

disputes. (Code Civ. Proc., § 2016.040, subd. (a).) If the parties are entirely successful, the plaintiff shall promptly file and serve a notice that the motion is withdrawn. If the parties have not entirely resolved the disputes, then no later than 7-27-26, (1) the parties shall file a joint statement listing the issues that were not resolved and (2) the moving party shall file a declaration describing the parties' efforts to meet and confer.

Analysis:

The moving party's effort to meet and confer was limited to a letter. Unless followed up by a personal meeting, telephone conversation, or video conference, a letter alone does not comply with section 2016.040 and does not constitute a reasonable and good-faith effort.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404781	COLOCHO VS CITY OF EASTVALE	MOTION FOR RELIEF FROM ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AND TO PERMIT WITHDRAWAL OF DEEMED ADMISSIONS

Tentative Ruling: The plaintiff's motion for relief from deemed admissions is granted on the condition that, no later than July 23, 2026, plaintiff's counsel pay to the City, through the City's attorney of record, the sum of \$8,295, consisting of (a) \$735, the sanctions previously ordered of \$735 and (b) \$7,560, the costs incurred in reliance upon the order deeming admissions.

Analysis:

The multiple failures of plaintiff's counsel –in failing to serve a verification in a timely fashion, in failing to oppose the motion to deem admissions, and in failing to promptly move for relief from the deemed admissions -- are inexcusable. However, unlike *Hearn v. Howard* (2009) 2009 177 Cal.App.4th 1193, none of those failures are due to the negligence or poor judgment of the plaintiff herself. Moreover, the prejudice to the City can be cured by the reimbursement of the expenses incurred by the City in reliance on the deemed admissions. Under those circumstances, the policy favoring trial on the merits prevails.